

26STCV21465 26STCV21465

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C316%2C08%2F14%2F2026

Source SHA-256: 9830b2919706de33e5ba94808524943730d3a69a6f2284f349d628a44e3420d0

Case Number: 26STCV21465 Hearing Date: August 14, 2026 Dept: 316

BACKGROUND

This case is an action to quiet title and prevent the named Defendants from allegedly damaging Plaintiff's property.

On July 7, 2026, Plaintiff Eden Mack filed a complaint against Defendants Eric Hartnack, Pietro Matini, 2445 Glyndon Avenue LLC, and Crosswind QRS 2, LLC. The complaint alleges six causes of action stemming from the facts alleged above.

On July 13, 2026, Plaintiff filed a Notice of Lis Pendens.

On July 22, 2026, Defendants Eric Hartnack, Pietro Matini and 2445 Glyndon Avenue LLC filed a Motion to Expunge Lis Pendens.

On August 3, 2026, Plaintiff filed an opposition.

On August 7, 2026, Defendants filed a reply.

TENTATIVE RULING

Defendants' Motion Expunge Lis Pendens is GRANTED.

The Court will not award attorney's fees and costs on the motion.

LEGAL STANDARD

A lis pendens is an instrument recorded in the office of the county recorder that gives constructive notice of a pending lawsuit affecting title to the real property described in the lis pendens. (See *Gale v. Superior Court* (2004) 122 Cal.App.4th 1388, 1395.) The pleadings in the lawsuit to which the lis pendens refers must describe a specific parcel of real property and must state a "real property claim." (Ibid.; Code Civ. Proc., § 405.1.) For purposes of expunging a lis pendens, a real property claim is a cause of action that, if successful, would affect title to or the right of possession of specific real property or the use of an easement identified in a pleading. (Code Civ. Proc., § 405.4; Civ. Code, §§ 405.2, 405.4.)

Where a motion to expunge a lis pendens has been filed, the proponent of the lis pendens carries the burden of showing evidence that the lis pendens is supported by a real property claim which is probably valid. (See Code Civ. Proc., § 405.32; *Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 70-71.) Where a party does not establish the probable validity of her claim underpinning a lis pendens by a preponderance of the evidence, the lis pendens shall be expunged. (Code Civ. Proc., § 405.32.)

EVIDENTIARY OBJECTIONS

Plaintiff filed several evidentiary objections to Eric Hartnack's declaration. The Court rules on said objections as follows:

SUSTAINED: Nos. 1 (Lack of Personal Knowledge), 3 (Improper Lay Opinion)

OVERRULED: Nos. 2, 4-9

Plaintiff also filed
several evidentiary objections to the Defendants' Stipulation and Hartnack's
supplemental declaration. The Court rules on said objections as follows:

SUSTAINED: n/a

OVERRULED: Nos. 1-6

Lastly, Defendants filed
several evidentiary objections to Plaintiff's declaration. The Court rules on
said objections as follows:

SUSTAINED: Nos. 1 (Hearsay)

OVERRULED: Nos. 2-4

DISCUSSION

I.

Real

Property Claim

Here, Plaintiff owns and
resides at 2439 Glyndon Avenue, Venice. (Compl., ¶ 1.) Defendants own, and
recently developed, the adjacent property at 2445 Glyndon Avenue, Venice.
(Compl., ¶ 2.) The two parcels share a common boundary. (Ibid.) The
parties were previously in dispute over said boundary, but Plaintiff alleges
that Defendants have stated that they no longer contest the location of it. (Compl.,
¶ 68 ["Owner Defendants have recently represented they no longer dispute the
location of the boundary line"].) Plaintiff filed suit against Defendants alleging
they are still encroaching on Plaintiff's property. (Compl., ¶¶ 15-16, 23, 26(b),
33, 36, 40, 41, 44-45, 46-47, 51, 53, 55, 59, 63, 67-68, 7076, 79.) Soon after
filing suit, Plaintiff filed a Notice of Lis Pendens against Defendants'
property. (See Notice, p. 2.)

Disputes regarding a
shared common boundary between two properties often may be classified as a
"real property claim." However, Defendants here are not disputing the location
of the shared common boundary between their property and Plaintiff's property. (See

Hartnack Decl., ¶¶ 4, 6; Defendants' Stipulation and Disclaimer re: Common Boundary Line and Interest in 2439 Glyndon Avenue, filed on August 7, 2026 ("August 7 Stip".) Plaintiff anticipated this in her complaint, stating that Defendants no longer dispute the location of the boundary line. (See Compl., ¶ 68.) Thus, if there is no dispute over the boundary line, this action would not affect either side's title to, or the right of possession of, Defendants' property. For this reason, the Court finds this action is not a "real property claim." (See Code Civ. Proc., § 405.4; Civ. Code, §§ 405.2, 405.4.)

Furthermore, the bulk of Plaintiff's complaint is built upon Defendants' alleged encroachment on her property, not a dispute over Defendants' property. (See Compl., ¶¶ 15-16, 23, 26(b), 33, 36, 40, 41, 44-45, 46-47, 51, 53, 55, 59, 63, 67-68, 7076, 79.) The Court finds no basis for a lis pendens on Defendants' property when this action is based on alleged improper conduct against Plaintiff's property.

In opposition, Plaintiff asserts that this is a "real property claim" because Defendants continue to encroach on her property. (See Opp'n, p. 5:25-6:11.) However, even if there is a "real property claim," it is centered on Plaintiff's property, not Defendants' property. (See Compl., ¶¶ 15-16, 23, 26(b), 33, 36, 40, 41, 44-45, 46-47, 51, 53, 55, 59, 63, 67-68, 7076, 79.) In this situation, the Court finds that it is unreasonable to impose a lis pendens against Defendants' property.

Plaintiff also contends that Defendants' "acceptance" of the boundary line is insufficient because it is not an official stipulation, covenant, or judgment. (See Opp'n, p. 7:11-22.) Plaintiff does not provide any citation stating that a party's concession is only meaningful if it is contained in a stipulation, covenant or judgment but in any event, Defendants filed a stipulation accepting the location of the boundary line as set out by Plaintiff's consultant in a survey attached to the Complaint. (See August 7 Stip; Exhibit B to Complaint.)

Lastly, the parties spend some time discussing whether the lis pendens should be expunged upon an undertaking by Defendants. However, an undertaking would only be considered if the Court found that the lis pendens is supported by a real property claim which is probably valid. (See *Campbell v. Superior Court* (2005) 132 Cal.App.4th 904, 917.) The Court has already determined that the lis pendens is

not supported by a real property claim. Therefore, consideration of an undertaking by Defendants is unnecessary.

The Court holds that the lis pendens on Defendants' property is probably not supported by a valid real property claim. For this reason, the lis pendens shall be expunged.

II.

Fees
and Costs

The Court "shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.)

The Court finds that Plaintiff acted with substantial justification and will not impose attorney's fee and costs.

CONCLUSION;

For the foregoing reasons, Defendants' Motion Expunge Lis Pendens is GRANTED. The Court will not award attorney's fees and costs on the motion.